

TENTATIVE RULINGS

DEPT CM2

Judge Andre De La Cruz

Court Reporters: Official court reporters (*i.e.*, court reporters employed by the Court) are not provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#); and
- [Court Reporter Interpreter Services](#).

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website no later than Wednesday afternoon immediately preceding Thursday's hearing. Moreover, tentative rulings may not be posted in every case.

Please do not call the department for tentative rulings if tentative rulings have not been posted.

The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted. Further, a motion may not be taken off calendar once a tentative ruling has been posted unless the entire action has been dismissed.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk by sending an email to: acarbajal@occourts.org. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

When a proposed order is required, even if motion is unopposed, the parties are ordered to submit it in two formats: (1) one draft in MS Word (*.doc or *.docx); and (2) one draft in PDF format with all attachments/exhibits attached thereto in accordance with Cal. R. Ct. 3.1312(c)(1) and (2).

Non-appearances: If nobody appears for a hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. *See Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal. App. 4th 436, 442 (2012), fn. 1.

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court’s website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
September 9, 2026

#	Case Name	Tentative
1.	<u>30-2021-01226377-CU-BC-NJC</u> Young vs. Gunlei Corporation	Before the Court is a Motion to Compel Deposition Testimony and Document Production, and Sanctions, brought by plaintiffs William Young and Jennifer Young (“Plaintiffs”) against defendants Egreen Transport Corporation (“Egreen”), Hong Chen, Jing Song, Yu Wang, Wen Chen, and Elaine Huang (collectively, “Defendants”). ROA 769. Plaintiffs seek an order, pursuant to California Code of Civil Procedure Sections 2025.450 and 2025.480, compelling Defendant Egreen to designate and produce its Person(s) Most Knowledgeable (“PMK”) for deposition and compelling Defendants Hong Chen, Jing Song, Yu Wang, Wen Chen, and Elaine Huang to appear and testify at noticed depositions and to produce documents requested therein. ROA 769, p.2.

	Additionally, Plaintiffs seek an order, pursuant to California Code of Civil Procedure Sections 2025.450 and 2025.480, imposing monetary discovery sanctions upon Egreen, Adli Law Group P.C., and Dariush G. Adli, Esq., jointly and severally, in the amount of \$7,835, for the costs incurred by Plaintiffs in bringing this Motion. The Court notes that no opposition or reply was filed. Accordingly, in making its findings, the Court considers only Plaintiffs' declaration submitted in support of the motion. ROA 769, p. 11. Motions to Compel Deposition Testimony and Production Under California Code of Civil Procedure Section 2025.450, when a party to the action or a party's agent fails to appear for examination after having received proper deposition notice, and without having served a valid objection under Section 2025.410, the party giving notice may move for an order compelling the deponent's attendance, testimony, and production of documents. Cal. Civ. Proc. Code § 2025.450(a). All motions to compel a deponent to appear or proceed with deposition, or to produce documents, electronically stored information, or tangible things for inspection must "be accompanied by a meet and confer declaration" that states that the moving party "has contacted the deponent to inquire about the nonappearance" or failure to produce. Cal. Civ. Proc. Code § 2025.450(b)(2). The meet and confer declaration must satisfy the statutory requirements of California Code of Civil Procedure Section 2016.040 only when a party seeks a deponents <i>further</i> responses to questions posed at deposition. <i>Id.</i> Here, on November 12, 2025, Plaintiffs served deposition notices and accompanying requests for the production of documents upon Defendants by mail. ROA 796, Exh. 1. Plaintiff's notices set the depositions of Defendants Egreen's PMK, Yu Wang, and Elaine Huang for December 4, 2025, and Defendants Hong Chen, Jing Song, and Wen Chen for December 3, 2025. <i>Id.</i> On December 2, 2025, Defendants' counsel unilaterally
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		rescheduled the depositions of Defendants to December 12, 2025. ROA 796, pp. 11, 52. On December 9, 2025, Defendants served Objections to Plaintiffs' Deposition Notices of Defendants Eggreen, Yu Wang, and Elaine Huang. ROA 796, p.67. Defendants did not appear for deposition or produce the documents requested in Plaintiffs' deposition notices. ROA 796, p. 11 The Court finds that Plaintiffs' notices were properly served, that Defendants failed to appear to the properly noticed depositions, that Defendants neither provided testimony nor produced the requested documents, and that Plaintiffs' Declaration in Support of their Motion satisfies the statutory meet and confer requirement. Accordingly, because Defendant did not raise objections to the deposition notices of Hong Chen, Jing Song, and Wen Chen, Plaintiffs are presumptively entitled to compel them to appear for deposition and to produce the requested documents. Valid Objections to Deposition Notice Valid objections to deposition notice must go to error or irregularity of the notice. <i>See</i> Cal. Civ. Proc. Code § 2025.410(a). Further, serving a code compliant objection to a deposition notice does <i>not</i> automatically stay the deposition absent a motion by the objecting party to stay or quash the deposition. <i>See</i> Cal. Civ. Proc. Code § 2025.410(c). A "plaintiff may serve a deposition notice without leave of court on any date that is 20 days after the service of the summons on, or appearance by, any defendant." Cal. Civ. Proc. Code § 2025.210(b). A court may grant a plaintiff leave to serve a deposition notice on an earlier date, either on motion or without notice, for good cause shown. <i>Id.</i> Oral depositions must be scheduled at least ten (10) days after service of the deposition notice, unless shortened or extended by the court for good cause shown. Cal. Civ. Proc. Code 2025.270.
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	The deposition of a natural person must be taken, at the noticing party's option, at a place that is <i>either</i> within seventy-five (75) miles from the deponent's residence <i>or</i> anywhere within the county where the action is pending that is also within 150 miles of the deponent's residence. Cal. Civ. Proc. Code 2025.250(a). A court may exercise its discretion to permit the deposition of a natural person at a place more distant than that permitted under Section 2025.250, upon motion accompanied by a meet and confer declaration and after considering "any factor tending to show whether the interests of justice will be served" in doing so. Cal. Civ. Proc. Code § 2025.260(a), (b). A party that is served with a deposition notice that does not comply with the provisions of Section 2025.210, outlined above, waives any error or irregularity unless they serve a written objection specifying the error or irregularity at least three (3) days before the scheduled deposition upon the noticing party and all other parties served with notice of the deposition. Cal. Civ. Proc. Code § 2025.410(a), (b). Here, the Court finds that none of Defendants' objections raised to the deposition notices of Defendants Egreen, Yu Wang, and Elaine Huang are valid objections to a deposition notice. Accordingly, Defendants have waived any objection to said notices on the grounds of error or irregularity. Accordingly, Plaintiffs are entitled to an order compelling the deposition testimony of Egreen's PMK, Yu Wang, and Elaine Huang. Sanctions re: Motions to Compel Discovery The California Code of Civil Procedure authorizes the imposition of various sanctions for misuse of the discovery process, including, but not limited to, "[making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery." Cal. Civ. Proc. Code § 2023.010(h). California Code of Civil Procedure Section 2025.480 imposes mandatory monetary sanctions "against any party . . . who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or
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	that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code § 2025.480(j). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011). Here, Defendants do not offer, and the Court does not find, any substantial justification for Defendants’ failure to appear to Plaintiffs’ properly noticed deposition or Defendants’ failure to raise valid objections to Plaintiffs’ notices. Additionally, the Court finds no reason why the imposition of monetary discovery sanctions upon Defendants for discovery misuse would result in any prejudice to Defendants. Accordingly, sanctions are mandatory and just. Proper Assignment of Sanctions Liability California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts <i>shall</i> impose monetary sanctions absent a finding “that the one subject to the sanction acted with substantial justification.” <i>Id.</i> When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the
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	motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) <i>with Kwan Software Eng'g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. <i>See Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney's declarations shows attorney attempted to convince client to comply). If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. <i>See generally Ghanooni, supra</i>, 20 Cal. App. 4th at 260-261. If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. <i>See generally Cornerstone, supra</i>, 56 Cal. App. 5th at 799. Here, the record before the Court is unequivocal that Defendants' failure to appear to Plaintiffs' properly noticed deposition is not attributable to client misconduct. Accordingly, the liability for sanctions for Defendants' discovery misuse lies squarely with Defendants' counsel. Determining a Reasonable Sanctions Amount Three principles guide the award and amount of attorney's fees and costs imposed as a discovery sanction. <i>See Cornerstone, supra</i>, 56 Cal. App. 5th at 790-91 (compulsion, causation, and reasonableness). "The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial
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	court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i>, (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added). The Court has already addressed the principles of compulsion and causation above; thus, only reasonableness remains. Having considered Plaintiffs’ declaration and calculation of the costs incurred in bringing this motion, the Court finds that Plaintiffs are entitled to the reasonable sanctions award of \$3,980. Accordingly, the Court issues the following Orders: Plaintiffs’ Motion to Compel the Deposition of Defendants Egreen Transport Corporation, Hong Chen, Jing Song, Yu Wang, Wen Chen, and Elaine Huang is GRANTED and Defendants are ORDERED to appear for deposition and provide the testimony and document production noticed in Plaintiffs’ Deposition Notices dated November 12, 2025, at a date and time to be determined by the parties not exceeding thirty (30) days from receiving notice of this Order. Additionally, the Court IMPOSES monetary discovery sanctions upon Defendants’ counsel of record at the time of the non-compliance, Adli Law Group P.C., in the amount of \$3,980, due and payable to Plaintiffs, no later than thirty (30) days from receipt of notice of this Order. Clerk shall give notice.
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2.	30-2024-01424411-CU-PA-CJC Avila vs. Peterson	Before the Court is a Renewed Motion to Compel Mental Examination brought by defendants James Edward Peterson and Christine Peterson (collectively, “Defendants”) against plaintiff Perry Avila (“Plaintiff”). ROA 140. The Court notes that Defendants’ renewed Motion to Compel Mental Examination follows the Court’s prior denial, on procedural grounds, of Defendants’ earlier motion seeking to compel Plaintiff to submit to a mental examination. ROA 137. Defendants now seek an order, pursuant to California Code of Civil Procedure Section 2032.020, compelling Plaintiff Avila to attend and complete a mental examination. ROA 140. Defendants further assert that new or different facts and evidence warrant renewal of their request under Code of Civil Procedure section 1008, subdivision (b). <i>Id.</i> Plaintiff requests that the Court deny the Defendants’ Renewed Motion. ROA 150. I. Motions for Reconsideration Under California Code of Civil Procedure Section 1008, a party affected by a Court’s order “may, within [ten] 10 days after service upon the party of written notice of entry of the order,” move the court to reconsider, modify, or revoke the court’s prior order. Cal. Civ. Proc. Code § 1008(a). The moving party’s application must be accompanied by an affidavit stating “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances or law are claimed to be shown.” <i>Id.</i> Importantly, applicants for reconsideration are subject to a strict standard of diligence in ensuring the new or different facts, circumstances, or law were <i>not known or available</i> at the time of the original application. <i>See Garcia v. Hejmadi</i> 58 Cal. App. 4th 674, 690 (1997). Courts will <i>not</i> consider new or different facts, circumstances, or law presented in an application for reconsideration that the court finds were available to the applicant at the time of the <i>original application</i> in controversy. <i>See Id.</i> (finding that the applicant
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		failed to meet the requirements of Section 1008 by presenting facts on reconsideration that were available at the time of the original application, without offering any justification for its failure to present them earlier). Defendants argue that their renewed motion is proper because the grounds for prior denial were procedural and Defendants submit new facts or circumstances in their revised moving papers. ROA 140 p. 17, ROA 137. Defendants contend their revised declarations constitute a new or different circumstance under California Code of Civil Procedure Section 1008 because their declarations present facts that Defendants cured the procedural deficiencies identified by the Court in its prior order. <i>See</i> ROA 140. The Court is not persuaded by the Defendants' argument. Defendants identify no genuinely new or different facts, circumstances, or <i>law</i> that could not, through the exercise of reasonable diligence, have been presented at the time of the original motion. ROA 140. Defendants cannot satisfy the requirements of Code of Civil Procedure section 1008 by simply curing deficiencies in their prior submissions and presenting the corrected information as <i>new</i> facts or circumstances warranting a renewal. Consequently, the Court DENIES Defendant's motion. Plaintiff shall give notice.
3.	30-2025-01525674-CU-NP-WJC Lister vs. Valley Post-Acute And Rehab LLC	Before the Court are eight (8) motions for sanctions ("Motions") brought by plaintiff Kathleen Rose Lister, by and through her successor in interest, Hattie Davis ("Plaintiff") against defendant Valley Post-Acute and Rehab, LLC ("Defendant"). ROAs 129, 136, 137, 138, 139, 140, 141, 150. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 128(a)(5), 2023.010, 2023.030, 2025.450(h), 2030.290(c), 2031.300(c), and 2033.280, imposing monetary, issue, and evidentiary sanctions upon Defendant and Defendant's counsel for Defendant's failure to comply with the Court's April 21, 2026, order to serve

	responses to Plaintiff's discovery demands. ROAs 129, 136, 137, 138, 139, 140, 141, 150, 106. Additionally, Plaintiff seeks an order: (i) admitting the genuineness of any documents and the truth of any matters specified in Plaintiff's request for admissions, set one ("RFA"); and (ii) imposing additional monetary discovery sanctions upon Defendant and Defendant's counsel of record, jointly and severally, in the amount of \$3,000.00. ROA 129 p. 7. In total, Plaintiff seeks \$27,500.00 in sanctions for Defendant's alleged discovery abuses and failure to obey the Court's orders. Relevant Timeline of Events On January 13, 2026, Plaintiff served a motion to compel the deposition of Defendant's person most qualified upon Defendant by email. ROA 24, p.76. On January 26, 2026, Plaintiff served the following motions upon Defendant by email: (i) a motion to deem facts admitted as to Plaintiff's RFA; (ii) a motion to compel responses to request for production, set one; (iii) a motion to compel responses to special interrogatories, set one; and (iv) a motion to compel responses to form interrogatories, set one. ROA 37, p.28; ROA 34, p.29; ROA 35, p.29; ROA 36, p.29. On January 27, 2026, the Court ordered the parties to attend an informal discovery conference ("IDC") facilitated by the Court, scheduled for February 18, 2026. ROAs 40, 43, 47, 48. On February 9, 2026, the Court continued the IDC to March 17, 2026. ROA 61. On March 13, 2026, Plaintiff served the following additional motions upon Defendant by email: (i) a motion to compel responses to requests for production, set two; (ii) a motion to compel responses to requests for production, set three; and (iii) a motion to compel responses to special interrogatories, set two. ROA 84, p.28; ROA 83, p.19; ROA 85, p.19. The Court immediately set these disputes for a
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		separate IDC scheduled for April 21, 2026. ROAs 81, 87, 89. On March 13, 2026, the Court continued the IDC scheduled for March 17, 2026, to coincide with the IDC scheduled for April 21, 2026, to consolidate the resolution of all the parties' discovery disputes. ROA 99. On April 21, 2026, the parties attended the IDC as ordered. ROA 106. In the Court's ensuing order, it noted that the following were undisputed: (i) no discovery responses have been provided; (ii) objections have been waived; and (iii) there is no substantial justification for prior non-compliance. ROA 106. Additionally, the parties submitted to the following Order of the Court: that Defendants are ordered to serve "verified, objection-free responses . . . by no later than May 21, 2026, to all outstanding discovery[,]" and that "sanctions are imposed in the amount of \$2,500 on Defendants" and Defendants' counsel, "jointly and severally, due and payable to Garcia and Coman no later than 30 days from today [i.e. May 21, 2026]." <i>Id.</i> Despite Plaintiff's repeated efforts to facilitate Defendant's compliance with the Court's Order, Defendant has failed to comply. ROA 150, p. 12; ROA 141, p. 15; ROA 140, p. 12; ROA 139, p. 13; ROA 138, p. 15; ROA 137, p. 12; ROA 136, p. 12; ROA 129, p. 9. Discretionary Sanctions California Code of Civil Procedure Section 128 endows the Court with the power to "compel obedience to its judgments, orders, and process" Cal. Civ. Proc. Code § 128(a)(4). California Code of Civil Procedure Section 177.5 provides that "[a] judicial officer shall have the power to impose reasonable monetary sanctions, not to exceed fifteen hundred dollars (\$1,500) . . . payable to the court, for <i>any</i> violation of a lawful court order . . . done without good cause or substantial justification." Cal. Civ. Proc. Code § 177.5 (emphasis added); <i>see also People v. Aguirre</i>, 64 Cal. App. 5th 652, 668 (2021) (stating Section 177.5 "does not require a 'willful violation, but merely one committed . . . without a valid excuse.'" (citations omitted)).
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A court imposing sanctions pursuant to Section 177.5 must “recite in detail the conduct or circumstances justifying the order.” Cal. Civ. Proc. Code § 177.5; *see also People v. Edwards*, 88 Cal. App. 5th 1259, 1273 (2023) (finding a court’s mere recitation of the words of the statute insufficient to support the imposition of sanctions).

Here, Defendant does not offer, and the Court does not find, any substantial justification for Defendant’s willful and ongoing noncompliance of this Court’s order to serve responses to Plaintiff’s discovery requests. Thus, Defendant is liable for up to \$1,500 in monetary sanctions pursuant to California Code of Civil Procedure Section 177.5.
Discretionary Sanctions for Misuse of the Discovery Process

“California discovery law authorizes a range of penalties, including monetary, issue, evidence, and terminating sanctions, for conduct amounting to ‘misuse of the discovery process.’” *Doppes v. Bentley Motors, Inc.*, 174 Cal. App. 4th 967, 991 (2009); *see also* Cal. Civ. Proc. Code § 2023.030(a)-(d) (granting the court authority to impose monetary, issue, evidentiary, and terminating sanctions).

“The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. *Doppes, supra*, 174 Cal. App. 4th at 992 (citing *Reedy v. Bussell*, 148 Cal. App. 4th 1272, 1294 (2007)). In choosing a sanction, “[t]he trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery.” *Id.*

To ensure proportionality, trial courts should generally take an “incremental” approach—that is, they should “attempt[] less severe alternative[] [sanctions]” *unless* the “record clearly shows lesser sanctions would be ineffective.” *Lopez v. Watchtower Bible and Tract Soc’y of New York*, 246 Cal. App. 4th 566, 604 (2016) (emphasis added).

“Only two facts are absolutely prerequisite to the imposition of a [nonmonetary] sanction. There must be a failure to comply, and the failure must be willful.” *Calvert Fire Ins. Co. v. Cropper*, 141 Cal. App. 3d 901, 904 (1983).

	Willfulness in the context of nonmonetary sanctions means a “conscious or intentional failure to act, as distinguished from accidental or involuntary noncompliance” <i>Deyo v. Kilbourne</i>, 84 Cal. App. 3d 771, 787-788 (1978). “Lack of diligence may be deemed willful in the sense that the party understood his obligation, had the ability to comply, and failed to comply.” <i>Id.</i> at 787; see <i>Housing Auth. v. Gomez</i>, 26 Cal. App. 3d 366, 372-73 (1972) (stating that a court may “justifiably conclude that [a party] ha[s] no intention of being deposed and would continue to engage in evasive tactics to achieve that end” where the party has already failed to appear for deposition and respond to discovery requests, including by disobeying a court order to do so). Here, as outlined above, the Court issued a clear order for Defendant to serve responses to Plaintiff’s discovery demands and the parties submitted to said order. ROA 106. It is unequivocal that Defendant failed to comply. Despite Plaintiff’s continuing efforts to ensure Defendant’s compliance, Defendant <i>still</i> has refused to comply. The Court is convinced that Defendant has no intention of responding to Plaintiff’s discovery demands or obeying this Court’s order to do so. Accordingly, the Court finds that Defendant’s discovery misuse is willful and that monetary and evidentiary sanctions are appropriate to prevent future abuse. Assigning Liability for Sanctions California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts <i>shall</i> impose monetary sanctions absent a finding “that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” <i>Id.</i> When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However,
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		when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) with <i>Kwan Software Eng'g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. See <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney's declarations shows attorney attempted to convince client to comply). If the <i>attorney</i> is responsible, for example, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. See <i>Ellis v. Toshiba America Info. Sys.</i>, 218 Cal. App. 4th 853, 879-80 (2013). If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. See generally <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 799. (standards permitting monetary sanctions upon a party's attorney). "An attorney may only be penalized . . . for advising disobedience. It is not enough that the attorney's actions were in some way improper and contributed to the
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		disobedience of the court order.” <i>Corns, supra</i>, 181 Cal. App. 3d at 200; <i>see also Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding the fact that plaintiff’s counsel opposed a motion to compel did not give rise to an inference counsel advised disobedience). The <i>Ghanooni</i> court reversed a lower court’s order imposing sanctions on both the client and the attorney and instead ordered sanctions only against the client. <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 261. Here, the Court finds that Defendant’s failure to obey the Court’s order to provide responses to Plaintiff’s discovery requests is not attributable to client misconduct. Indeed, the Court finds that the record shows unequivocally that the misconduct is attributable to Defendant’s counsel’s discovery abuse. Accordingly, monetary sanctions are appropriate upon Defendant’s counsel only. Determining a Reasonable Sanctions Amount Three principles guide the award and amount of attorney’s fees and costs imposed as a discovery sanction. <i>See Cornerstone, supra</i>, 56 Cal. App. 5th at 790-91 (compulsion, causation, and reasonableness). “The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i> (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added). Having considered the foregoing principles in light of Plaintiff’s counsel’s calculation of the expenses incurred in bringing these motions, the Court finds that Defendant’s
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	counsel is liable for the reasonable sanctions amount of \$27,500, owed to Plaintiff's counsel, pursuant to California Code of Civil Procedure Section 2023.010. However, the Court finds that the imposition of additional sanctions of up to \$1,500, pursuant to California Code of Civil Procedure Section 177.5, would be duplicative and disproportionate. Consequently, the Court elects not to impose sanctions under this latter authority. Accordingly, Plaintiff's Motion for sanctions is GRANTED and evidentiary sanctions are IMPOSED as follows: (i) Defendant is precluded from presenting any evidence and/or testimony, and/or eliciting through direct or cross examination any matter as to the following issues: that Defendant had sufficient staff to meet the needs of its residents during the residency of Kathleen Rose Lister on an ongoing basis in compliance with 22 Code of Regulations § 72329.1; that Defendant did not know that their staff who provided "nursing services", as the term is defined in 22 California Code of Regulations § 72311, to the Plaintiff were unfit to perform their job duties with Valley Post-Acute and Rehab LLC and employed them nonetheless; that Defendant's managing agents did not know of the unfitness of their staff who provided "Nursing Services" to the Plaintiff to perform their job duties at Valley Post-Acute and Rehab LLC; that such actions by Valley Post-Acute and Rehab LLC were not the proximate cause of Kathleen Rose Lister suffering from avoidable, dehydration, hypernatremia, and ultimately sepsis, while she was a resident of the facility; and (ii) Defendant is precluded from presenting any evidence and/or testimony, and/or eliciting through direct or cross examination any matter as Defendant's Separate and Additional Defense Nos. 1, 6-7, 12-13, 21-23, 27-29, and 33-36. Additionally, the Court IMPOSES additional monetary sanctions upon Defendant's counsel of record, Buchholz, Harris, Levine & Brennan, P.C., in the total collective amount of \$27,500, pursuant to California Code of Civil Procedure Section 2023.010, due and payable to Plaintiff's counsel, Garcia & Coman, no later than ninety (90) days after receiving notice of this Order.
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